

BEFORE THE FEDERAL MARITIME COMMISSION

Washington, D.C.

DOCKET NO. 25-24

SOUTHERN INTERNATIONAL CO., LTD.,

Complainant,

DAYNAMEZ GROUP OF COMPANIES LLC,

Respondent.

RESPONDENT'S RESPONSE TO COMPLAINANT'S MOTION TO DISMISS

COUNTERCLAIM

Comes Now the Respondent and makes this its Response to the Complainant's Motion to Dismiss the Counterclaim and would state the following:

1. This is a proceeding based on dealings between Southern International Co, Ltd, hereinafter referred to as SIC and Daynamez Group of Companies LLC hereinafter referred to as Daynamez. A complaint has been filed by SIC invoking jurisdiction under the Shipping Act for alleged violations during the time that the parties were dealing with one another. The Counterclaim is an action growing out of the same set of dealings. If there is jurisdiction for the claims that were asserted by SIC according to the rulings, then there would be jurisdiction for the claims by Daynamez which arise out of the same factual scenario.
2. SIC is asserting that Daynamez has no right to take a similar position to what it has been

taking in these proceedings. Essentially if this is an action for unfair practices under the Shipping Act for payments allegedly not paid by the Respondent, then why would this not be true for the Complainant as well? The gist of the Counterclaim is that the sum total of the transactions has resulted in money being owed to the Respondent.

3. The Complainant filed a Complaint that is essentially for money being allegedly owed under the Shipping Act when in fact it owes money to Daynamez as a result of their dealings. SIC has already asserted jurisdiction and the Court has indicated that there are sufficient allegations in the Complaint that the Respondent is a NVOCC and held itself out as a NVOCC including in the complaint. The money owed is a result of the Net/ Net transactions which the Complainant has vigorously argued constitute jurisdiction over the parties as it is a way of purchasing space on a vessel. SIC cannot have it both ways by stating that the Net/Net nature of the funds only applies to its claim for jurisdiction and not to Daynamez's Counterclaim for fees earned as a result of Net/Net transactions which were applicable to both SIC and Daynamez. It is also respectfully pointed out that Daynamez can plead alternatively in asserting its rights with regard to jurisdiction. This is especially true as the Complainant has stated that there is jurisdiction over claimed issues and then claims that there is no jurisdiction over the same matters, when raised by Daynamez.
4. It would not be in the best interests of justice to have the Claim and the Counterclaim determined in 2 different jurisdictions and/or forums. It is the Respondent who has asserted that jurisdiction is in front of the Federal Maritime Commission, rather than in front of the contractually specified Arbitration proceeding in Vietnam. It is SIC that has chosen to disregard its contract and file a proceeding in front of the Federal Maritime Commission, and the 2 counts of the Counterclaim arise out of the same series of dealings and therefore arises out of the Shipping Act.

5. SIC takes issue with the format of the Counterclaim. The original complaint was not set forth in a manner as required under Federal Rule of Civil Procedure 8 and 10, that is in paragraphs that could be responded to by Daynamez. The format that is employed by the Counterclaimant is done in concise paragraphs that set forth the basis for the Complaint. SIC's Complaint was rambling, with several sentences in each part of the Complaint, which is not the situation with the Counterclaim.
6. It is pointed out that SIC holds itself out as an OTI under the Federal Maritime Commission and there is nothing in the Complaint indicating that it was the owner of the cargo. It was acting as a third party intermediary.

Count I Indemnification, Defend, and Hold Harmless and violation of the Shipping Act

7. Count I alleges the violative behavior of SIC that leads to a violation of the Shipping Act. A letter is attached to the Counterclaim reviewing a situation for which there is jurisdiction whereby the violative behavior is that SIC abandoned cargo that it was contracted to move resulting in detention and a claim against Daynamez. A reference is made to the Shipping Act in the Counterclaim. The Respondent does specifically reference 46 U.S.C.A. 41102. Respondent can list other sections of the Shipping Act should your honor deem it necessary, such as, 46 U.S.C.A. 41102(c).
8. For a counterclaim to survive scrutiny in an FMC proceeding, it needs to identify a violation of the Shipping Act. *Samsung Electronics America, Inc., Complainant v. HMM Co., Ltd. F/k/a Hyundai Merchant Marine Co., Ltd., Respondent.*, 2025 WL 992387.
9. The actions of SIC are violative of 46 U.S.C.A. § 41102 which states in part:
“(c) Practices in handling property.--A common carrier, marine terminal operator, or ocean transportation intermediary may not fail to establish, observe, and enforce just and reasonable regulations and practices relating to or connected with receiving, handling, storing, or

delivering property. 46 U.S.C.A. § 41102 (West).

If the Court wishes, the Counterclaimant/Respondent could be more descriptive of this. SIC as the Counter-Respondent/Complainant is as per its allegations is an OTI. Count I relates to SIC's improper handling of the cargo, it is unjust and unreasonable to stick Daynamez with the bill for these damages. SIC booked the cargo. Federal Statute 46 U.S.C. § 41301(a) states that a party can pursue actions for a violation. Daynamez was listed as a Notify. Party on the bill of lading. It is believed that SIC booked the cargo on many of these shipments and/or assisted with the booking.

10. As previously stated, a part of this is that it is a Net/Net arrangement. The Complainant has made this argument that this brings the claim within the jurisdiction of the Federal Maritime Commission. The claim in Count I is for alleged violations of the handling of cargo. The Counter Respondent/Claimant needs to assume the indemnity for its violations of the Shipping Act.

Wherefor Daynamez would ask that the Motion to Dismiss be denied as to Count I.

Count II-Breach of Contract and violation of the Shipping Act

11. As to Count II, the amount claimed is the sum total of the dealings between the parties. This is for a failure to pay the Respondent. SIC alleges that Daynamez has no right to pursue a claim under the same transactions that are the subject of the Second Amended Complaint. SIC already established jurisdiction according to the Court, so it cannot now state that Daynamez has no right to pursue a claim under the same set of circumstances. The basis of the Counterclaim that has been brought is that Daynamez owed money under the Shipping Act for violations for refusing to remit payments. The Second Amended Complaint states that there is money owed under the Shipping Act and that these were Net/Net deals and that that Daynamez was acting as a NVOCC. It cannot now state that there is no jurisdiction.

12. The same statute applies here as there was improper handling that occurred more than once and there were shipments for which money was owed to Daynamez. The money was to be paid on a Net/Net basis which SIC cited in its claim for jurisdiction.
13. Federal Statute 46 USCA 41102 (c) also applies to Count II, which is an unfair practice in terms of not paying Daynamez, who is the notifying party on the shipments and was otherwise active in these transactions.
14. It is respectfully pointed out that the Second Amended Complaint is based in part on a contract and also alleges violations of the Shipping Act.
15. This case involves several shipments and Daynamez not being paid for its shipments. The amount owed is cumulative of several shipments.
16. SIC has alleged jurisdiction and is proceeding on the basis that there is jurisdiction and therefore Daynamez can also assert jurisdiction of a shipping dispute. SIC was involved with booking the shipments and acting as the shipper and named as the shipper on at least some of the bill of lading. SIC according to its pleadings, was at all material times a Licensed OTI with the Federal Maritime Commission.
17. The Countercomplainant did allege the elements of a complaint for a breach of contract and for a Shipping Act Violation. As per the Complaint, two things can be true at the same time, that there is a breach of contract that constitutes a violation of the Shipping Act. In its Motion to Dismiss, SIC states that your honor ruled that it can be a case for a breach of contract and a violation of the Shipping Act at the same time.

Wherefor Daynamez would ask that the Motion to be Dismiss be denied as to Count II.

Dated: May 4th, 2026

CERTIFICATE OF SERVICE

I certify that on the 4th day of May 2026 a true and correct copy of the foregoing Notice of Service was hereby served by electronic mail upon the party of record for the Complainant, in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

Served to:

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Dated: May 4th, 2026

Respectfully submitted, Daniel W. Raab, P.A.

s/Daniel W. Raab

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